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Provision of August 31, 2023
Register of provisions
n. 388 of August 31, 2023

THE GUARANTOR FOR THE PROTECTION OF PERSONAL DATA

IN THE meeting today, attended by
Prof. Pasquale Stanzione, President, Prof.
Ginevra Cerrina Feroni, Vice President, Dr.
Agostino Ghiglia and Attorney Guido Scorza, members, and
Secretary General Fabio Mattei;

HAVING REGARD to Regulation (EU) No. 2016/679 of the European Parliament and of the Council of April 27, 2016, concerning the protection of natural persons with regard to the processing of personal data, as well as the free movement of such data (General Data Protection Regulation, hereinafter, "Regulation");

HAVING REGARD to Legislative Decree No. 196 of June 30, 2003, as amended by Legislative Decree No. 101 of August 10, 2018, containing the Code regarding the protection of personal data (hereinafter "Code");

HAVING REGARD to Regulation No. 1/2019 concerning internal procedures of external relevance, aimed at carrying out the tasks and exercising the powers assigned to the Guarantor for the protection of personal data (hereinafter: "Regulation 1/2019");

HAVING EXAMINED the complaint submitted by Mr. XX regarding an alleged unlawful processing of personal data concerning himself and his spouse, XX, carried out by the Bar Association of XX (hereinafter "Bar Association");

HAVING EXAMINED the information provided by the parties;

HAVING REGARD to the remaining documentation on file;

HAVING REGARD to the observations of the Office, formulated by the Secretary General pursuant to Article 15 of the Guarantor's Regulation No. 1/2000 on the organization and functioning of the Office of the Guarantor for the protection of personal data (hereinafter "Guarantor or Authority");

Reporting by Prof. Pasquale Stanzione;

1. The case and the investigative activity of the Guarantor

1.1. By note dated August 27, 2020, addressed to the Bar Association, as well as to the Guarantor, Mr. XX (hereinafter "complainant") complained, also on behalf of his spouse Mrs. XX (hereinafter "complainant's spouse"), about the publication on the Bar Association's website of certain hearing postponement notices at the Court of XX, in which the complainant and the complainant's spouse appeared as defendants in criminal proceedings, noting that, following a search of their names on the Google search engine, information regarding their hearings appeared and it was possible to download the aforementioned non-anonymized notices. The complainant produced the aforementioned notices, as well as screenshots showing the disclosure of the data. By note dated September 22, 2020, the complainant provided updates on the matter at hand, informing the Authority that although the Bar Association, with a certified email sent on September 14, 2020, had informed him that it had removed the document subject to correspondence from the Bar Association's web portal, he complained that the document obscured on the Bar Association's website remained indexed on Google and that other non-anonymized documents remained on the internet, causing prejudice to himself and his wife. In particular, he stated, "we were in contact with a real estate agency to rent a property in Rome and they told us that the owner does not rent properties to convicted individuals" and, regarding his work in a company, that "the worsening of my image online due to such acts could also lead to my having to resign." The complainant sent further requests to the Bar Association, also addressed to the Guarantor (notes dated September 26, 2020, October 17, 2020, February 23, 2021).

Having examined all the documentation produced, the Guarantor sent a request for information to the Bar Association, with note prot. n. 18471 of April 7, 2021, with particular reference to the disclosure on the institutional website of the names of the complainant and his spouse – associated, regarding the complainant, with the hearing notice of July 1, 2020, retrievable on the internet via the “Google” search engine, and, regarding the spouse, with the hearing notices of June 19, 2020, and July 17, 2020, also retrievable on the internet through the “Google” search engine, as well as with the notice of March 5, 2021.

In particular, in light of the “principle of minimization” pursuant to Article 5 of the Regulation and of what is established, for personal data relating to criminal convictions and offenses, by Articles 10 of the Regulation and 2-octies of the Code, it was requested to know the purposes and methods of the aforementioned processing; the content of the notices subject to initial disclosure, with specific reference to the data contained therein pursuant to Article 10 of the Regulation, and whether and when they had been anonymized; the technical-organizational measures adopted by the Bar Association, in order to ensure that the processing of personal data is carried out in compliance with the principles of lawfulness, fairness, transparency, purpose limitation, data minimization, accuracy, storage limitation, integrity, and confidentiality, as well as in compliance with the provisions regarding the processing of data referred to in Article 10 of the Regulation.

With the same request for information, the Guarantor reported the disclosure in question to the Superior Council of the Judiciary, to the Ministry of Justice, as well as to the Court, on whose institutional website some hearing notices concerning the interested parties had been disclosed, which responded, with note dated April 19, 2021, stating that the reported case was due to “a mere error by the person responsible for the publication” and that “the incident has provided... the opportunity to draw the attention of all, magistrates (particularly the section presidents) and court staff (particularly the administrative directors) to the punctual and rigorous compliance with the provisions for the protection of personal data confidentiality.”

With note prot. no. 21253 of April 19, 2021, the Order also responded to the request of the Guarantor, stating, regarding the purposes and methods of the processing in question, that due to the health emergency, access to judicial premises by lawyers had to be limited, “in agreement with the senior offices of the Justice Palace of XX, it was decided to publish the hearing lists (which mostly consist of the indication of the interested A.G., the R.G. number, the surname of the defender, the surname and name of the party involved in the proceedings, and the date of the adjournment) also on the web portal of this Order. This was done to allow lawyers to update their professional agenda by reading the public provisions issued by the A.G. as received from the relevant Registries.” It was also stated that “from a procedural perspective, which sees the handling of certain hearings in public form, nothing erroneous was noted regarding the publication of the related lists on the web portal of the Court and this Order; these documents, moreover, have always been posted on the doors of the Courtrooms and/or in the bulletin boards located in the corridors of the Justice Palace and have never been censored in the nominative part of the interested defendants. I believe, *prima facie*, that the lack of indication of the place and date of birth and/or the tax code prevents any potential reader of the provisions that concern us from tracing the certain identity of the subjects indicated therein.” Regarding the request concerning the anonymization of the lists in question, the Order stated that it had “promptly acted, whenever requested by the [complainant], to remove the documents indicated by them from the only website of the Order, as access to technical portals of other Entities, such as that of the local Court, which was also involved in the complainant's reports, was obviously restricted, and for which the undersigned could do nothing.” No response, however, was provided regarding the Guarantor's requests concerning the content of the aforementioned lists subject to initial disclosure, specifically regarding the judicial data contained therein, as well as the technical-organizational measures adopted to ensure that the processing of personal data is carried out in compliance with the principles set out in Articles 5 and 10 of the Regulation.

1.2. With note prot. no. 46557 of September 16, 2021, the Guarantor communicated to the Order the initiation of proceedings for the adoption of measures pursuant to Article 58 of the Regulation, stating

that it had been established that the processing carried out by the Order had occurred "in the absence of a legitimate legal basis, pursuant to the combined provisions of Articles 10 GDPR and 2-octies of the Code, as there is no law or regulation that authorizes the processing of the judicial data in question, as well as in a manner not compliant with the principles set out in Article 5, paragraph 1, letters a), c) and f) GDPR" and that within 30 days of receiving the same communication, written defenses could be submitted or a request could be made to be heard by the Guarantor (Articles 166, paragraphs 6 and 7, of the Code and 18, paragraph 1, of Law 689/1981).

With note prot. no. 5689 of October 13, 2021, the Order requested a hearing in order to detail the events and to highlight the absolute good faith of the Order in managing the procedures that led to the complaint.

1.3. Subsequently, Mr. XX, with note prot. no. 36859 of July 7, 2022, prompted by an additional note of July 26, 2022, sent the Guarantor a further request addressed to the Order for the removal of the data published on the website www.oravta.it, specifically referring to the integration of the hearing list of July 11, 2022, at the Court of XX. Following a verification by the Office on July 11, 2022, which confirmed the presence of the aforementioned list on the institutional website of the Order, with note prot. 40252 of July 26, 2022, the Guarantor informed the Order of what had been verified with the aforementioned assessment and, considering the expressed intention to exercise the right of defense, to send the written defenses related to the procedure in question and to indicate whether they intended to be heard by the Authority, in addition to what would be represented in the written defenses.

1.4. An additional report was also sent to the Superior Council of the Judiciary, the Ministry of Justice, as well as to the aforementioned Court, as the Guarantor verified that the hearing list of July 11, 2022, containing judicial data referring to thirteen other interested parties, was published on the institutional website of the same Court, which confirmed "having ascertained that the publication of that document occurred due to a mere oversight of the operator, having - this Presidency - already reminded the administrative staff and the section presidents involved of the strict compliance with the principles and rules regarding the disclosure of personal data by the Court" and that "in any case, in order to minimize the possibilities of error, despite the given conditions, a new reminder note containing further precautions to be adopted in case of publication of hearing lists on the Court's website has already been sent to the involved registries."

The Ministry of Justice has also assured its commitment to ensuring that judicial data is processed in a manner that guarantees its protection and security through appropriate technical and organizational measures. To this end, it has stated that "a circular has recently been issued to the judicial offices (...) to further raise awareness among justice operators about the importance of protecting judicial data" and, in a note addressed to the judicial offices, it reminded that the same Superior Council of the Judiciary, already with opinion no. 185/2003, has deemed that, with regard to civil hearings, after examining articles 83 and 116 of the implementing provisions of the civil procedure code and article 128 of the civil procedure code, "(...) it can be considered sufficient to indicate, on the role affixed to the door of the hearing room, only the number of the general register of the dispute, excluding any further references to the names of the parties and the subject of the case."

1.5. Following the aforementioned note from the Guarantor no. 40252 of July 26, 2022, the Order, with note prot. 5594 of July 29, 2022, represented that it had decided to remove from the institutional website the section related to the publication of hearing records as of August 1, 2022, and that it had also removed references to the records from Google, including those related to the complainant.

With note prot. no. 5744 of August 10, 2022, the Order submitted defensive writings, also requesting a hearing before the Guarantor.

With communication prot. no. 45954 of September 2, 2022, the complainant complained about the lack of response to the request for the removal of their data dated July 7, as well as the failure to remove the same data by the Order.

The Office therefore sent another note to the Order, prot. no. 49261 of September 19, 2022, awaiting to know the response from the Order to the complainant's request, also in relation to what is

established by article 12, paragraph 3, of the Regulation.

On October 21, 2022, the hearing took place via telematic means, following which the Order sent a communication to the Guarantor, note prot. no. 57926 of October 24, 2022, providing a response to the complainant's request of July 7, 2022, as prompted by the Authority with the aforementioned note of September 19, 2022.

2. Applicable legislation and outcome of the investigative activity.

According to article 5, letters a), c) and f), of the Regulation, personal data must be processed lawfully, fairly, and transparently in relation to the data subject ("lawfulness, fairness, and transparency"), adequate, relevant, and limited to what is necessary in relation to the purposes for which they are processed ("data minimization"); processed in a manner that ensures an adequate level of security for personal data, including protection against unauthorized or unlawful processing and against accidental loss, destruction, or damage ("integrity and confidentiality").

Furthermore, with regard to the category of data related to criminal convictions and offenses, article 10 of the Regulation states that their processing may only occur under the control of a public authority or if the processing is authorized by Union or Member State law that provides for appropriate safeguards for the rights and freedoms of the data subjects (cf. article 2 octies of the Code).

At the conclusion of the investigative activity and taking into account what was represented by the Order both in the defensive memoranda and during the hearing, it was established that the processing of personal data by the Order, consisting of the disclosure - via the institutional website www.oravta.it - of data referred to in article 10 of the Regulation, related to the complainant and their spouse, occurred in the absence of a legitimate legal basis, pursuant to the combined provisions of articles 10 of the Regulation and 2-octies of the Code, as there is no legal or regulatory provision that authorizes the processing of the judicial data in question, and also in a manner not compliant with the principles set forth in article 5, paragraph 1, letters a), c) and f) of the Regulation.

The disclosure, in the absence of lawful grounds, of such data by the Council of the Order of lawyers of XX as the data controller therefore constitutes the elements of the administrative offense provided for and sanctioned by article 166, paragraph 2, of the Code, in conjunction with article 83, paragraph 5, of the Regulation.

3. Conclusions.

In light of the evaluations mentioned above, taking into account the statements made by the data controller during the investigation - and considering that, unless the act constitutes a more serious crime, anyone who, in a proceeding before the Guarantor, falsely declares or certifies news or circumstances or produces false acts or documents is liable under article 168 of the Code "Falsehood in declarations to the Guarantor and interruption of the execution of the tasks or exercise of the powers of the Guarantor" - the elements provided by the data controller in the defensive memoranda and in the hearing do not allow to overcome the objections notified by the Office with the initiation of the procedure, nor do any of the cases provided for by article 11 of the Guarantor Regulation no. 1/2019 apply.

For these reasons, the unlawfulness of the processing of personal data, which led to the disclosure of the judicial data in question, carried out by the Order in violation of articles 5, paragraph 1, letters a), c) and f) and 10 of the Regulation is noted.

****2-octies of the Code.****

Considering that the conduct has exhausted its effects and that the Order has declared to have adopted measures aimed at preventing the repetition of the complained conduct, the prerequisites for the adoption of corrective measures pursuant to Art. 58, par. 2, of the Regulation do not currently exist.

****4. Adoption of the injunction order for the application of the administrative pecuniary sanction (Arts. 58, par. 2, lett. i) and 83 of the Regulation; Art. 166, comma 7, of the Code).****

The violations of Arts. 5, par. 1, lett. a), c) and f) of the Regulation and of Art. 2-octies of the Code (cf.

Art. 166, comma 2, of the Code), caused by the conduct of the Order, are subject to the application of an administrative pecuniary sanction pursuant to Art. 83, par. 5, of the Regulation.

It should be noted that the Authority, pursuant to Arts. 58, par. 2, lett. i) and 83 of the Regulation, as well as Art. 166 of the Code, has the power to “impose an administrative pecuniary sanction pursuant to Article 83, in addition to [other] measures [corrective] referred to in this paragraph, or in lieu of such measures, depending on the circumstances of each individual case” and, in this context, “the College [of the Authority] adopts the injunction order, which also provides for the application of the accessory administrative sanction of its publication, in whole or in part, on the Authority's website pursuant to Article 166, comma 7, of the Code” (Art. 16, comma 1, of the Regulation of the Authority No. 1/2019). The aforementioned administrative pecuniary sanction, depending on the circumstances of each individual case, must be determined in amount taking into account the principles of effectiveness, proportionality, and deterrence, as indicated in Art. 83, par. 1, of the Regulation, in light of the elements provided for in Art. 83, par. 2, of the Regulation itself, with respect to which it is observed that:

- the holder has engaged in a persistent unlawful conduct over time, despite the interested party having made several requests regarding the disclosure of the personal data in question (Art. 83, par. 2, lett. a), of the Regulation);
- the Authority became aware of the event following a complaint from an interested party (Art. 83, par. 2, lett. h) of the Regulation);
- the processing of data carried out by the Order involved the dissemination on the web of judicial data related to the interested parties (Art. 83, par. 2, lett. a) and g) of the Regulation);
- from the perspective concerning the subjective element, no intentional attitude emerges on the part of the data controller (Art. 83, par. 2, lett. b) of the Regulation);
- the holder has demonstrated a sufficient degree of cooperation with the Authority (Art. 83, par. 2, lett. f) of the Regulation);
- there are no previous measures from the Authority against the Order for relevant violations (Art. 83, par. 2, lett. e) of the Regulation);
- the fact occurred in the peculiar emergency context of the Covid-19 pandemic characterized by high complexity (Art. 83, par. 2, lett. k) of the Regulation).

In light of the aforementioned elements, assessed as a whole, it is deemed appropriate to determine the amount of the pecuniary sanction provided for by Art. 83, par. 5, of the Regulation, in the amount of €20,000.00 (twenty thousand) for the violation of Arts. 5 of the Regulation and 2-octies of the Code, as an administrative pecuniary sanction deemed, pursuant to Art. 83, par. 1, of the Regulation, effective, proportional, and deterrent.

It is finally noted that the prerequisites of Art. 17 of Regulation No. 1/2019 concerning internal procedures with external relevance, aimed at carrying out the tasks and exercising the powers assigned to the Authority, are met.

****THEREFORE, THE AUTHORITY****

declares the unlawfulness of the processing of personal data carried out by the Order of Lawyers of XX for the violation of Arts. 5 of the Regulation and 2-octies of the Code.

****ORDERS****

pursuant to Arts. 58, par. 2, lett. i) and 83 of the Regulation, as well as Art. 166 of the Code, the Order of Lawyers of XX, based in XX – XX XX, represented by the President pro tempore, to pay the sum of €20,000.00 (twenty thousand) as an administrative pecuniary sanction for the violations indicated in this provision; it is represented that the offender, pursuant to Art. 166, comma 8, of the Code, has the option to settle the dispute by payment, within 30 days, of an amount equal to half of the imposed sanction.

****ORDERS****

the aforementioned Order, in the event of failure to settle the dispute pursuant to Art. 166, comma 8, of the Code, to pay the sum of €20,000.00 (twenty thousand) according to the methods indicated in the annex, within 30 days from the notification of this provision, under penalty of the adoption of the consequent executive acts pursuant to Art. 27 of Law No. 689/1981.

Pursuant to Art. 78 of the Regulation, Arts. 152 of the Code, and 10 of Legislative Decree No. 150/2011, against this provision it is possible to appeal to the ordinary judicial authority, under penalty of inadmissibility, within thirty days from the date of communication of the provision itself or within sixty days if the appellant resides abroad.

Rome, August 31, 2023

****THE PRESIDENT****

Stanzione

****THE REPORTER****

Stanzione

****THE SECRETARY GENERAL****

Mattei